

liability and "thereby take her property without due process of law." 262 U. S., at 486. The Court noted that a federal taxpayer's "interest in the moneys of the Treasury . . . is comparatively minute and indeterminable" and that "the effect upon future taxation, of any payment out of the [Treasury's] funds, . . . [is] remote, fluctuating and uncertain." *Id.*, at 487. As a result, the Court ruled that the taxpayer had failed to allege the type of "direct injury" necessary to confer standing. *Id.*, at 488.

Although the barrier *Frothingham* erected against federal taxpayer suits has never been breached, the decision has been the source of some confusion and the object of considerable criticism. The confusion has developed as commentators have tried to determine whether *Frothingham* establishes a constitutional bar to taxpayer suits or whether the Court was simply imposing a rule of self-restraint which was not constitutionally compelled.⁶ The conflicting viewpoints are reflected in the arguments made to this Court by the parties in this case. The Government has pressed upon us the view that *Frothingham* announced a constitutional rule, compelled by the Article III limitations on federal court jurisdiction and grounded in considerations of the doctrine of separation of powers. Appellants, however, insist that

⁶ The prevailing view of the commentators is that *Frothingham* announced only a nonconstitutional rule of self-restraint. See, e. g., Jaffe, *Standing to Secure Judicial Review: Private Actions*, 75 Harv. L. Rev. 255, 302-303 (1961); Arthur Garfield Hays Civil Liberties Conference: *Public Aid to Parochial Schools and Standing to Bring Suit*, 12 Buffalo L. Rev. 35, 48-65 (1962); Davis, *Standing to Challenge Governmental Action*, 39 Minn. L. Rev. 353, 386-391 (1955). But see Hearings on S. 2097 before the Subcommittee on Constitutional Rights of the Senate Judiciary Committee, 89th Cong., 2d Sess., 465, 467-468 (1966) (statement of Prof. William D. Valente). The last-cited hearings contain the best collection of recent expression of views on this question.